

UNIT 13

A Written Report on the Incident by Ltn Mustasaari

Defendent	Captain Andrew James
Suspect of illicit action	
Place of birth	Winchester
Date of birth	7.3 1954
Nationality	British

According to the suspect the MS Marina and its crew left Santander in Spain on the 14th of September 2006. She was on her way to her port of destination, Kotka in Finland, where she was due to deliver a cargo of containers and dry bulk. Ports of call on the route were Antwerp in Belgium, Gdynia in Poland, the last port of call being Riga in Latvia.

Helicopter assistance was requested for the transportation of a seriously injured crew member to a Finnish hospital. This occurred when the vessel was in position 59° 40' North and 024° 00' East. After asking for help on channel 16, they waited for a helicopter for half an hour, after which the patient was hoisted into the helicopter and taken to hospital.

The vessel continued on its voyage in the main fairway, but experienced a temporary breakdown in the power system. Weather conditions had by then deteriorated and the Marina started drifting towards the coast. The Coast Guard had contacted the vessel and boarded the ship. The Coast guard officer informed the Captain that the vessel was in a restricted area away from the general fairway. He also told them that foreign vessels had access to the restricted area only with a special permission. According to the suspect the reason for deviating from the course was a navigational error and a temporary blackout. On inspecting the crew list it was revealed that one of the crew members was of Algerian nationality. The seaman on board who did not have a visa, was not aware of the fact that a visa is compulsory for anyone of non-EU nationality in Finland. He had believed that a seaman's book was sufficient. The violation of the Finnish restricted area was, according to the suspect, due to an error of navigation and the fact that the ship had been lost. The ship was escorted back to the main fairway.